

EXHIBIT

MERIDIAN STRUCTURES LIMITED — INTERNAL EMAIL CHAIN

Recovered from mail server MSL-EXCH01. Produced in late disclosure of 2 April 2024.

Exhibit reference	SA/22
Custodians	a.ferris@; r.delacroix-hale@; p.raghunathan@; f.kettleborough@ (all @meridianstructures.co.uk)
Disclosure note	Page 4 of this chain (item 10.6) was disclosed on 2 April 2024. Meridian's solicitors wrote on 11 April 2024 asserting that item 10.6 is subject to legal advice privilege, that it was disclosed in error, and demanding its return. HSE has sequestered it. It is reproduced here because the CPS contends that privilege does not attach and/or is displaced by the iniquity exception. THE READER SHOULD TREAT ITEM 10.6 AS DISPUTED.
Threading note	The chain has been reconstructed from separate mailbox copies. Two messages exist only in the recipient's mailbox and not in the sender's Sent Items.

ITEM 10.1

From: p.raghunathan@meridianstructures.co.uk
To: a.ferris@meridianstructures.co.uk
Cc: r.delacroix-hale@meridianstructures.co.uk
Sent: Mon 06 November 2023 16:22
Subject: Milestone 6 - certification risk

“Aldwyn — I have run the Milestone 6 position. The milestone is defined in Schedule 3 as ‘structural frame and all loading platforms complete and independently certified’. We have certificates for LB-1 to LB-6. There is nothing for LB-7 on the register.

Vellacott Marr will not certify without the full set — they have been very tight on this all year. £610,000 is at risk and if it slips past the November valuation we do not see it until the January payment cycle at the earliest.

Can someone chase Halbbrook please. Priya”

ITEM 10.2

From: a.ferris@meridianstructures.co.uk
To: r.delacroix-hale@meridianstructures.co.uk
Sent: Mon 06 November 2023 18:04
Subject: FW: Milestone 6 - certification risk

“Ruairidh — deal with this. I don’t want it coming back to me. A.”

Note: Ms Raghunathan was removed from the recipients at this point.

ITEM 10.3

From: r.delacroix-hale@meridianstructures.co.uk
To: n.ashgrove-pike@halbbrook-twc.co.uk
Sent: Tue 07 November 2023 08:31
Subject: LB-7 certificate - urgent

“Nathaniel — I need the LB-7 cert. You said you’d formalise it. We are being held to ransom on a payment milestone over one sheet of paper for a bay you have already told me works. Can you just send it through today. R.”

Note: No reply to this message exists on the Meridian server. Halbbrook's archive has been deleted (see D09 Part 3).

ITEM 10.4

From: r.delacroix-hale@meridianstructures.co.uk
To: a.ferris@meridianstructures.co.uk
Sent: Mon 13 November 2023 17:58
Subject: RE: Milestone 6

“Halbrook are dragging their feet. Ashgrove-Pike is on leave until the 20th. Scaffolders have flagged something on the east end at six and seven which I am dealing with. Realistically LB-7 loads Wednesday not tomorrow, which puts the milestone into December.”

Note: This message is the only contemporaneous written reference by Mr Delacroix-Hale to a matter 'flagged' on the east elevation at levels 6 and 7 prior to the collapse.

ITEM 10.5

From: a.ferris@meridianstructures.co.uk
To: r.delacroix-hale@meridianstructures.co.uk
Sent: Mon 13 November 2023 19:44
Subject: RE: Milestone 6

“December is not an option. Coldbrook are already using the programme against us on the extension of time and if we hand them a missed milestone as well we have nothing left to trade.

I don't need to know the detail. I need the milestone certified. Find a way through it and tell me when it's done. A.”

Note: Mr Ferris's account (D07) is that 'find a way through it' referred to commercial and programme measures. Note the phrase 'I don't need to know the detail' immediately follows a message referring to a flagged defect at levels 6 and 7.

ITEM 10.6

From: o.trelawney-baptiste@hallowaybrant.com
To: a.ferris@meridianstructures.co.uk
Sent: Wed 15 November 2023 21:16
Subject: PRIVILEGED & CONFIDENTIAL - Brackenmoor - preliminary advice

“Aldwyn, further to our call this evening.

You have told me that the LB-7 certificate was produced on Monday evening using the Halbrook template and that Mr Ashgrove-Pike had not signed it. You have asked me whether the document should now be ‘made good’ by obtaining his signature and, if that is not possible, whether it can simply be omitted from the response to the inspector.

I must advise you in the clearest terms that it cannot. Producing an incomplete response to a notice under s.20(2)(j) is itself an offence under s.33(1)(e) HSWA 1974. Obtaining a signature now and presenting the document as contemporaneous would, on your own account of the facts, be capable of amounting to fraud by false representation and to perverting the course of justice. I cannot advise on how it might be done and I would have to consider my own position under the SRA Codes if that course were pursued.

My advice is that the document must be produced to HSE as it stands, that the circumstances of its creation must be disclosed, and that you should not discuss this with Mr Delacroix-Hale further except in my presence.

Please confirm you have received this. O.T-B.”

Note: DISPUTED — asserted to be privileged and inadvertently disclosed. No confirmation of receipt appears on the server. The certificate was produced to HSE on 24 November 2023 without any disclosure of the circumstances of its creation.

ITEM 10.7

From: p.raghunathan@meridianstructures.co.uk
To: a.ferris@meridianstructures.co.uk; f.kettleborough@meridianstructures.co.uk
Sent: Thu 16 November 2023 09:12
Subject: Formal concern - LB-7 certificate and Milestone 6

“I am raising this formally and in writing.

The LB-7 design check certificate was placed on the shared drive on the evening of Monday 13 November. I can see the file properties. It is dated 27 October on its face. It was not on the temporary works register at any point before the collapse and Halbrook have no job number for it.

I believe that document may have been created after the event and I believe that if Milestone 6 is now certified on the strength of it, the company will be making a false representation to Coldbrook for the purpose of obtaining £610,000. I believe that may be a criminal offence. I also believe there has been a serious breach of health and safety law and that a man has died.

I am not prepared to sign the Milestone 6 application. I am putting this in writing so that there is a record. If it is not addressed I will raise it with the HSE. Priya Raghunathan, Senior Quantity Surveyor”

ITEM 10.8

From: a.ferris@meridianstructures.co.uk
To: p.raghunathan@meridianstructures.co.uk

Sent: Thu 16 November 2023 09:41

Subject: RE: Formal concern - LB-7 certificate and Milestone 6

“Priya, this is not your area and you do not have the full picture. All communications about the incident go through Halloway Brant. Do not contact the HSE or anyone else. I will speak to you. A.”

Note: Ms Kettleborough was not copied on this reply.

ITEM 10.9 — ADMINISTRATIVE NOTE ON THE CHAIN

- Items 10.1, 10.7 and 10.8 were produced on 24 November 2023 in the original disclosure.
- Items 10.2, 10.3, 10.4, 10.5 and 10.6 were produced only on 2 April 2024, described as 'identified on a legacy server during migration'. Meridian has not explained why five messages from the mailbox of a serving director were not located in the original search. No disclosure certificate or search protocol has been provided.
- Item 10.5 exists in Mr Delacroix-Hale's Inbox but not in Mr Ferris's Sent Items. Mr Ferris's Sent Items folder for the period 1-30 November 2023 contains 11 messages. His Sent Items for October 2023 contains 402 messages.
- Mr Delacroix-Hale has, through solicitors, declined to be interviewed and has indicated he will assert the privilege against self-incrimination.